

Law & Motion
ADD-ON

21. 9:00 AM CASE NUMBER: C24-01078

CASE NAME: JOHN CARDENAS, JR. VS. AMERICA WEST MEDICAL TRANSPORT

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**

TENTATIVE RULING:

Before the Court is a motion for leave to file a first amended complaint by Plaintiffs John Cardenas, Sr. and Geri Cardenas. This motion is opposed by Defendants Antioch Dunes Healthcare, LLC and 1210 A Street.

Plaintiffs' motion is **GRANTED**. Plaintiffs shall file their First Amended Complaint within ten days of this hearing.

Request for Judicial Notice

In support of their opposition, Defendants request judicial notice of five items: (1) the Court's November 7, 2024 ruling on their demurrer to the Complaint, (2) Plaintiffs' November 21, 2024 *ex parte* application for leave to file a first amended complaint and the Court's December 17, 2024 order granting that application, (3) Plaintiffs' July 29, 2025 Opposition to Defendants' Motion for Summary Judgment and supporting papers, (4) the Court's October 26, 2025 tentative ruling on Defendants' Motion for Summary Judgment, and (5) the Court's December 4, 2025 ruling adopting the tentative ruling as the final ruling on Motion for Summary Judgment. (Defendant's Request for Judicial Notice ("RJN"), 2:6-19.)

Each of these items is a record of this Court. Judicial notice of the records of "any court of this state" is authorized under Evidence Code section 452(d). (Evid. Code, § 452(d)(1).) The Court takes judicial notice of the existence of identified court records, the fact that they were filed or issued, the dates reflected therein, the language used in those documents, and the orders and rulings they contain, but not of the truth of any hearsay statements or disputed factual matters asserted within them. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Only matters that are reasonably beyond dispute are subject to judicial notice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 835.)

The unopposed request for judicial notice is **GRANTED**.

I. Brief Factual and Procedural Background

Defendant Antioch Dunes does business as Delta View Post Acute ("Delta View") and operates a skilled nursing facility at 1210 A Street, Antioch, California. (Complaint ("Compl.") at 2:1-7.) This

case arises out of a January 9, 2024^{[41](#)} auto accident that occurred while Plaintiff John Cardenas, Sr., then a patient of Defendants' skilled nursing facility, was being unloaded from an America West Medical Transport ("America West") gurney van that had delivered him back to Defendants' facility from a non-emergency medical appointment. (*Id.* at 3:9-26.)

Defendants' front loading zone sits in front of the Delta View facility, parallel to a busy, four-lane roadway called A Street, which has a posted speed-limit of 30 miles-per-hour that drivers often exceed. (RJN, Exhibit C at 3.) It was approximately 5:50 p.m. and dark outside at the time Mr. Cardenas returned from his medical appointment in the American West gurney van; the roadway on A Street was busy. (Compl. at 3:3, 14-15.) The loading zone was occupied by non-medical transport vehicles at that time. (RJN, Exhibit C at 3.) The driver for the America West gurney van, Erick Rosales Sacramento ("Mr. Rosales"), idled for approximately 30 seconds to one minute in front of the Delta View facility in the hopes that a spot would open up; when one did not, he opted to double park the gurney van in the lane of traffic adjacent to the loading zone on A Street. (*Ibid.*)

While the gurney van driver and his partner unloaded Mr. Cardenas from the vehicle, all three men were struck by a vehicle traveling on A Street, driven by Defendant Monique "Monie" Ellis. (Compl. at 3:24-26; RJN, Exhibit C at 3.) Mr. Cardenas was severely injured in the impact; he sustained a broken back, a severed spine, three bruised vertebrae, a traumatic brain injury, a shoulder injury, and various cuts and bruises. (RJN, Exhibit C at 3.) He has undergone two back surgeries stemming from this incident. (*Ibid.*) He also became bed-bound as a result of the incident and unable to ambulate without assistance, which led to multiple severe bed sores requiring extensive wound care. (*Ibid.*)

On July 7, 2025, Mr. Cardenas also suffered a subsequent fall resulting in a fractured leg; Plaintiffs contend the January 9, 2024 incident was a substantial factor in causing the July 2025 fall. (Declaration of Ryan Kraft in support of motion for leave to file first amended complaint ("Kraft Dec.") ¶10.)

Behind Delta View's facility is a rear parking lot accessible by two driveways that feed out from behind the building onto A Street from each side of the building. (RJN, Exhibit C at 3.) Defendants did not have signage indicating the existence of a dedicated loading and unloading zone for medical transport vehicles behind the building, although facility administrators testified that medical transport vehicles are and were at the time of the subject incident permitted to load and unload patients either in the back parking lot or in the front loading zone. (*Ibid.*) Evidence has been adduced that Mrs. Cardenas, and at least two medical transport employees were told by Delta View employees that the back parking lot was for facility staff use only. (*Ibid.*)

The Plaintiffs filed a Complaint for damages in this case on April 23, 2024, against Ms. Ellis (the alleged driver of the vehicle that struck Mr. Cardenas and the gurney van), the gurney van operator America West Medical Transport, Inc., Antioch Dunes Healthcare, LLC, 1210 A Street, LLC, and Does 1-30. The Plaintiffs alleged three causes of action: (1) Motor Vehicle Negligence, (2) Premises Liability, and (3) Negligence. A default judgment was entered against Ms. Ellis on August 8, 2024. The initial Complaint expressly alleged that Plaintiff Geri Cardenas suffered loss of consortium

damages as a result of Mr. Cardenas' injuries, incorporating those allegations into each cause of action. (Compl. at 4:5-6, 18-21; 5:27-6:2; 6:16-19.)

Plaintiffs amended their complaint to substitute in Mr. Rosales (the gurney van driver) as Doe No. 1 and subsequently entered into a good faith settlement with America West and Mr. Rosales on June 2, 2025.

A demurrer filed by Defendants Antioch Dunes, and 1210 A Street, was filed June 17, 2024, as to Plaintiffs' second and third causes of action; in a November 7, 2024 ruling the demurrer was sustained in part and overruled in part. It was overruled as to Plaintiffs' second cause of action and sustained without leave to amend as to their third cause of action on the grounds that the Court found the negligence claim was duplicative of the premises liability claim.

Pursuant to stipulation by all parties, Plaintiffs filed an *ex parte* application for permission to file a First Amended Complaint to add a standalone cause of action for Mrs. Cardenas' loss of consortium claim and to remove the negligence cause of action against Defendants Antioch Dunes and 1210 A Street that the court had dismissed on demurrer. (RJN, Exhibit B.) The Court granted the application on December 17, 2024, and ordered the First Amended Complaint filed within 10 days of the order. (*Ibid.*) Plaintiffs' counsel Ryan Kraft never filed the stipulated-to First Amended Complaint. (Kraft Dec. ¶16.) Plaintiffs' reply to Defendants' opposition to the instant motion explains that this was the result of counsel's paralegal's failure to file the First Amended Complaint. (Plaintiffs' Reply to Defendant's Opposition to Motion for Leave to File First Amended Complaint ("Reply") at 3:6-7.)

Defendants filed a motion for summary judgment May 6, 2025. The Court issued a tentative ruling denying the motion on October 26, 2025, which was adopted as the final ruling on December 4, 2025. (RJN, Exhibit C.) Among the arguments Plaintiffs raised in their opposition to the motion for summary judgment was that Defendants were *per se* negligent because they failed to operate a code compliant loading zone as required by California building codes for skilled nursing facilities. However, because negligence *per se* was outside the scope of Plaintiffs' complaint, the Court did not consider that argument. (RJN, Exhibit C.)

Plaintiffs' counsel emailed Defendants' counsel January 8, 2026, requesting stipulation to a "second amended complaint" to address "the negligence per se issue that the court raised in the MSJ ruling" and to "update[] the liability facts to what is currently known and include[] the July 2025 incident." (Declaration of Christopher T. Choi in Support of Defendants' Opposition to Plaintiffs' Motion for Leave to File First Amended Complaint ("Choi Dec."), Exhibit B.) Attached to the email was a red-lined copy of the complaint, captioned as the "Second Amended Complaint." The following day, Defendants' counsel Christopher Choi replied, informing Mr. Kraft that Defendants would not stipulate to the filing of an amended complaint. (Choi Dec., Exhibit C.)

The proposed amended complaint submitted with Plaintiff's motion and attached to the email to Mr. Choi was red-lined against what appears to be the previously stipulated to but un-filed First Amended Complaint rather than against the operative complaint. (see generally Compl.; Kraft Dec.,